

Nadia Zahmoul

Litigant in Person

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Address withheld throughout proceedings on safety grounds

1 May 2026

The Clerk

House of Lords Justice and Home Affairs Committee

House of Lords

London SW1A 0PW

By email: HLJusticeHomeAffairs@parliament.uk

Copied: liaison@parliament.uk (Liaison Committee — for oversight purposes)

Dear Sir or Madam,

**WRITTEN EVIDENCE — ACCESS TO TRANSCRIPTS AT PUBLIC EXPENSE FOR
DISABLED LITIGANTS IN PERSON — BV20D01752 — ZAHMOUL — SEVEN
HEARING DAYS**

I write to place before the Committee, as written evidence, seven Form EX107 applications for the official transcripts of the following hearing days in BV20D01752 before MacDonald J:

- Trial day, 20 February 2024
- Trial day, 21 February 2024
- Trial day, 22 February 2024
- Trial day, 23 February 2024
- Trial day, 26 February 2024
- Trial day, 28 February 2024
- Hearing of 8 May 2025

These are placed before the Committee as **seven discrete applications**, not as a single application for the entirety of a ten-day hearing.

The applications are submitted as written evidence raising a systemic question within the Committee's remit on the administration of justice:

By what mechanism, and on what authority, can a disabled litigant in person be denied access at public expense to the official transcripts of the proceedings against her, where those transcripts are required to support a registered criminal investigation operationally engaged by the Metropolitan Police Service (CCR-6501-26-0100-000), an active judicial review (AC-2025-LON-004293), and ongoing Chancery enforcement of liability anchored in the very findings the transcripts would test?

The matters identified concern the treatment of evidence on the face of a judicial record, rather than the merits of any underlying decision. The question is not one of

appellate review, but of whether the handling of that evidence engages systemic issues beyond the ordinary supervisory function of the courts.

Each of the seven applications is supported by the following four grounds for public expense:

(1) A formal criminal referral is registered with the Metropolitan Police Service (CCR-6501-26-0100-000; CRN 01/7340002/26). The investigation is operationally engaged. The official transcripts are required to particularise that referral. The criminal investigation cannot be made conditional on a third-party application for the very document needed to support it.

(2) The judgment of 18 April 2024 (DH v RH (No 3) [2024] EWFC 79) is 111 paragraphs long and contains zero references to autism, PTSD, disability, vulnerability, mental health, or Part 3A. The contemporaneous attendance notes record at least 22 in-trial references to autism and PTSD: 11 by the trial judge himself, 5 by my counsel, 2 by the husband's counsel, and 1 by my former husband under cross-examination. The official transcripts are required to establish, on the official record, the contrast between what was said in oral evidence and what was recorded in the judgment that followed.

(3) The attendance notes currently available are pupil notes only. They are sufficient to identify the speakers and references but are not the official record. No official transcript has previously been produced of these proceedings.

(4) The transcripts are required in connection with ongoing Chancery proceedings BL-2024-001217 currently before Master Pester, in which the judgment of 18 April 2024 and the costs judgment of 24 May 2024 are operative. They are also required in connection with the active judicial review AC-2025-LON-004293 in the Administrative Court.

An earlier EX107 application of 27 March 2026 for the official transcript of the entire ten-day final hearing was refused by the trial judge on 27 March 2026 in a one-line refusal, and again on 30 March 2026 in a structured refusal. The trial judge's stated objection on 30 March 2026 was that "the EX107 discloses no reasonable grounds for expending public funds on transcribing the entirety of a ten-day hearing" and that "the cost of transcribing a ten-day hearing at public expense represents a very considerable call on public funds".

These objections do not arise on the seven applications now placed before the Committee. Each application is for a single hearing day. None is for the entirety of a ten-day hearing. The cost of any one application is a small fraction of the cost objected to. Each application stands or falls on its own merits.

I further note, for the parliamentary record:

(a) The application of 27 March 2026 included an offer that, if a narrower order were considered appropriate, the Court should specify which parts of the hearing it regarded as sufficient. That offer was not engaged with. The seven applications now filed implement that offer by separating the trial into per-day units.

(b) Written reasons for the refusal of 30 March 2026 were formally requested on 30 March 2026 and again on 14 April 2026. Thirty-one days have now elapsed since the original request. No written reasons have been provided.

(c) Paragraph 7 of the sealed order of MacDonald J dated 8 May 2025 in the same proceedings directs that "a full transcript of the hearing of 8 May 2025 shall be provided to both parties at the expense of HMCTS, the provision of the transcript is necessary and proportionate in the circumstances." The trial judge has, in the same proceedings, ordered an official transcript at HMCTS expense in respect of his own ex tempore judgment, while refusing the same provision in respect of the underlying ten-day final hearing. The two positions are inconsistent on the face of his own orders.

I record that the Commons Justice Committee has previously received eleven written-evidence submissions across 78 days, none of which has produced a substantive response. That Committee is therefore not the addressee of this submission. The Liaison Committee is copied for oversight purposes.

The Committee is not asked to determine the underlying applications. The seven applications are placed on the parliamentary record as written evidence of how the framework for access to transcripts at public expense operates in practice for a disabled litigant in person, where every formal channel of remedy has been engaged and none has produced an answer.

The matters set out in this submission, and the documents attached, are placed before the Committee for such use as the Committee considers appropriate to its remit on the administration of justice.

I am grateful to the Committee for its time.

Yours faithfully,

Nadia Zahmoul

Litigant in Person

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217

Veritas Numquam Perit

Enclosures:

- Form EX107 — 20 February 2024
- Form EX107 — 21 February 2024
- Form EX107 — 22 February 2024
- Form EX107 — 23 February 2024
- Form EX107 — 26 February 2024
- Form EX107 — 28 February 2024
- Form EX107 — 8 May 2025
- EX107 email chain — 27 March to 14 April 2026 — containing the original application of 27 March 2026, the trial judge's refusal of 27 March 2026, the formal request for written reasons of 30 March 2026, the trial judge's structured refusal of 30 March 2026, my point-by-point reply of 31 March 2026, and my second request for written reasons of 14 April 2026.